

25CHCV03831 25CHCV03831

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Case Number: 25CHCV03831 Hearing Date: August 31, 2026 Dept: F43

Dept. F43

Hearing Date: 08-31-26

Case # 25CHCV03831, Marinier v. General
Motors, LLC

Trial Date: N/A

MOTION FOR ATTORNEY
FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff Jeremy K. Marinier

RESPONDING PARTY: Defendant General Motors, LLC

RELIEF REQUESTED

Order awarding plaintiff \$27,349.20: \$25,661 in attorney fees; \$1,108.05 lodestar
enhancement (0.05x); and \$580.15 in costs and expenses.

RULING: Motion is granted in the reduced amount of \$22,456.15: \$21,876 in attorney fees and \$580.15 in costs
and expenses. The 0.05 multiplier is
denied.

SUMMARY OF ACTION

On October 28, 2025, plaintiff Jeremy K.

Marinier (Plaintiff) filed this lemon law action against defendant General Motors, LLC (Defendant), concerning defects in a 2024 GMC Sierra 1500 and asserting breaches of implied warranty of merchantability and express warranty under the Song-Beverly Consumer Warranty Act and breach of Civil Code section 1793.2, subdivision (b). Defendant filed and served an unverified answer on December 30, 2025. The parties settled the matter on April 27, 2026, when Plaintiff accepted Defendant's offer to repurchase the subject vehicle and to pay \$5,000 in attorney fees costs, or pay fees by a noticed motion. (Declaration of John P. DeMircift ¶ 20; Declaration of Ryan Kay ¶ 6.) Plaintiff executed the release on May 20, 2026, and the notice of settlement was filed on July 14, 2026. (Kay Decl. ¶ 7.)

On July 22, 2026, Plaintiff filed the instant motion for attorney fees, costs, and expenses accrued in litigating this matter and in filing and litigating the fee motion. Defendant filed an opposition on August 18, 2026, asserting the court should reduce the requested hours to 14.5 hours with no multiplier because plaintiff's counsel used templated documents, the case is not complex, and no significant motion practice or trial occurred. Plaintiff filed a reply on August 24, 2026.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiff is a "buyer" and this matter settled in Plaintiff's favor, Plaintiff is the prevailing party pursuant to Civil Code section 1794, subdivision (d).

1. Hourly

Rates

Plaintiff requests hourly rates of \$465 and \$495 for his

counsel of record, John P. DeMircift and Athena Nguyen of Leo Lemons, LLP. (DeMircift Decl. ¶¶ 27, 30-35; Declaration of Athena Nguyen ¶¶ 28, 31-36.) Defendant does not challenge the hourly rates.

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market “through its own affidavits.” (MBNA Am. Bank, N.A. v. Gorman (2006)

147 Cal.App.4th Supp. 1, 13.) Once the

moving party presents competent evidence of prevailing rates, the burden shifts

to the opposing party. The opposing

party may present rulings which concern hourly rates for comparable work from

the relevant legal market. (Bronshteyn

v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th

1139, 1160-1162.) The court must engage

in an objective analysis “to determine the prevailing rate in the community for

comparable professional legal services[.]” (Graciano v. Robinson Ford Sales, Inc.

(2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may “consider the attorney’s skill

as reflected in the quality of the work, as well as the attorney’s reputation

and status.” (MBNA Am. Bank, N.A.,

supra, 147 Cal.App.4th Supp. at p. 13.)

After reviewing the DeMircift and Nguyen declarations, counsel’s

experience and titles, and the Laffey Matrix, the court finds the requested

hourly rates are reasonable.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

John P. DeMircift

\$465 (through October 31, 2025)

\$495 (November 7, 2025)

\$465 (through October 31, 2025)

\$495 (November 7, 2025)

Athena Nguyen

\$465 (through October 31, 2025)

\$495 (November 7, 2025)

\$465 (through October 31, 2025)

\$495 (November 7, 2025)

2. Billing Entries

Plaintiff requests fees for 52.2 hours of attorney work, including 20.5 hours for the instant motion.

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for "actual time expended."

(Civ. Code, § 1794, subd. (d).)

This means an analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807,

816.) "A prevailing buyer has the burden

of 'showing that the fees incurred were 'allowable,' were reasonably necessary to the conduct of the litigation and were 'reasonable in amount.'" (Hanna

v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations

omitted.) A verified fee bill is prima

facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) If a fee request

is opposed, "[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins.

Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been raised, then plaintiff's counsel bears the burden of showing that the fees were reasonably necessary, and the court has the discretion to reduce fees

awarded. (En Palm, LLC v Teitler
Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to
the factors from Church of Scientology v. Wollersheim (1996) 42
Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer
Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved
in the litigation; (2) the nature of the litigation and its difficulty and the
intricacies and importance of the litigation; (3) the skill required and
employed in handling the litigation, the necessity for skilled legal training
and ability in trying the case, and counsel's education and experience in the
particular type of work involved; (4) the attention given to the case; (5) the
success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

Defendant asks the court to reduce the hours requested for
counsel's use of templated documents, excessive client communications, post-settlement
surrender coordination, and administrative tasks. (Opposition at pp. 7:13-10:28.)

After reviewing Defendant's arguments and evidence as
well as Plaintiff's moving papers and reply, the court reduces the requested
fees by attorney DeMircift's hours by 1.6
hours and attorney Nguyen's hours by 6.0 hours because several entries
(preparing the instant motion a) are excessive and counsel bills for clerical
tasks such as calendaring and filing documents.

However, the court does not strike hours for post-settlement
coordination of the vehicle surrender. (See
Covert v. FC USA, LLC (2022) 73 Cal.App.5th 821,838 [denying similar
arguments for which no case law was provided].
But see Dominguez v. American Suzuki Motor Corp. (2008) 160
Cal.App.4th 53, 60 [barring attorney fees for pre-litigation resolution of
consumer claim].)[1]

Attorney Name

Requested Hours

Approved Hours

Approved

Rates

Total

John P. DeMircift

2.5

11.1

2.2

9.8

\$465

\$495

\$5,874

Athena Nguyen

4.6

34[2]

4.5

28.1

\$465

\$495

\$16,002

Total approved attorney fee lodestar: \$21,876

3. Lodestar Enhancement

After determining an appropriate lodestar figure, the court may determine whether that figure should be adjusted with a positive or negative multiplier. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham v. DaimlerChrysler Corp.* (2005) 34 Cal.4th 553, 582.)

With the revised attorney fee amount, the 0.05x enhancement is \$1,093.80.

Plaintiff asserts the multiplier is justified because counsel obtained a full repurchase (maximum recovery) in a manner that did not waste court resources, this case is unique because it was filed the year California AB 1755 went into effect, and Plaintiff's recovery was delayed due to Defendant's refusal to negotiate. In opposition, Defendant asserts this case does not warrant a multiplier because this is a routine lemon law case, with no novelty or complex issues, and any contingent risk was minimal.

The court finds Plaintiff's arguments do not support applying any multiplier. Although ABA 1755 establishes new requirements (opt-in framework for manufacturers, pre-litigation notice requirements, strict pre-litigation repair and replace deadlines, and good faith mediation), these requirements are not difficult to adopt and do not present complex or novel legal issues. Moreover, any delay caused by Defendant is accounted for in the above attorney fee award based on emails between plaintiff's counsel and defense counsel and defense counsel's paralegal. Finally, the parties settled this matter in less than a year.

Therefore, the court denies Plaintiff's request to apply a multiplier.

B. Costs and Expenses

Plaintiff seeks \$580.15 in costs and expenses incurred in litigating this matter. (DeMircift Decl., Exh. 3: Memorandum of Costs.) Defendant does not challenge this request.

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034 subd. (a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

Because the request is unopposed, the court grants Plaintiff's request for \$580.15 in costs and expenses.

CONCLUSION and ORDER

Plaintiff's motion for attorney fees, costs, and expenses is granted in the reduced amount of \$22,456.15: \$21,876 in attorney fees and \$580.15 in costs and expenses. The 0.05 multiplier is denied.

Plaintiff to give notice.

[1] Although Defendant failed to identify each particular time entry it seeks to strike, to court performed its own review of the billing statements.

[2] Includes 7.0 hours requested for reviewing the opposition, replying, preparing for the hearing, and attending

the hearing. (Reply at p. 9:20-25.)